



Bill Number: S.B. 1635

Miranda Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Requires each law enforcement agency in Arizona to adopt a written policy that:
 - a) requires all peace officers to visibly display the officer's name or badge number, or both, when performing law enforcement duties; and
 - b) prohibits all peace officers from performing law enforcement duties while wearing a facial covering that conceals the officer's identity.
2. Provides specific exemptions to the requirements of both of these written policies.
3. Classifies performing law enforcement duties in violation of these written policies as assault, or unlawful imprisonment, as outlined.
4. Stipulates that a peace officer who violates these written policies and who commits assault or unlawful imprisonment may not assert any privilege or immunity for the peace officer's conduct.
5. Subjects a peace officer who violates these requirements to civil liability to the injured person in an amount of \$10,000, or actual damages, whichever is greater.
6. Expands the criminal classifications of *impersonating a public servant* and *impersonating a peace officer* by including the fraudulent display of government employee identification.
7. Outlines what is considered to be a *facial covering*.

MIRANDA FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1635
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 13-1203, Arizona Revised Statutes, is amended
3 to read:

4 13-1203. Assault; classification

5 A. A person commits assault by:

6 1. Intentionally, knowingly or recklessly causing any physical
7 injury to another person; or

8 2. Intentionally placing another person in reasonable apprehension
9 of imminent physical injury; or

10 3. Knowingly touching another person with the intent to injure,
11 insult or provoke such person[; OR

12 4. PERFORMING LAW ENFORCEMENT DUTIES AS A PEACE OFFICER IN
13 VIOLATION OF THE WRITTEN POLICY REQUIRED BY SECTION 13-2411 OR 13-2415].

14 B. Assault committed intentionally or knowingly pursuant to
15 subsection A, paragraph 1 [OR 4] is a class 1 misdemeanor. Assault
16 committed recklessly pursuant to subsection A, paragraph 1 [OR 4] is a
17 class 2 misdemeanor. Assault committed pursuant to subsection A,
18 paragraph 2 or 3 is a class 3 misdemeanor.>>

19 <<Sec. 2. Section 13-1303, Arizona Revised Statutes, is amended to
20 read:

21 13-1303. Unlawful imprisonment; classification; definition

22 A. A person commits unlawful imprisonment by knowingly restraining
23 another person.

24 B. In any prosecution for unlawful imprisonment, it is a defense
25 that:

26 1. The restraint was accomplished by a peace officer or detention
27 officer acting in good faith in the lawful perform ance of [his] [THE
28 OFFICER'S] duty [AND IN COMPLIANCE WITH THE WRITTEN POLICIES REQUIRED BY
29 SECTIONS 13-2411 AND 13-2415]; or

1 2. The defendant is a relative of the person restrained and the
2 defendant's sole intent is to assume lawful custody of that person and the
3 restraint was accomplished without physical injury.

4 C. Unlawful imprisonment is a class 6 felony unless the victim is
5 released voluntarily by the defendant without physical injury in a safe
6 place before arrest in which case it is a class 1 misdemeanor.

7 D. For the purposes of this section, "detention officer" means a
8 person other than an elected official who is employed by a county, city or
9 town and who is responsible for the supervision, protection, care, custody
10 or control of inmates in a county or municipal correctional institution.
11 Detention officer does not include counselors or secretarial, clerical or
12 professionally trained personnel.>>

13 <<Sec. 3. Section 13-2406, Arizona Revised Statutes, is amended to
14 read:

15 13-2406. Impersonating a public servant; classification;
16 definition

17 A. A person commits impersonating a public servant if such person
18 pretends to be a public servant and engages in any conduct[, INCLUDING THE
19 FRAUDULENT DISPLAY OF GOVERNMENT EMPLOYEE IDENTIFICATION,] with the intent
20 to induce another to submit to his pretended official authority or to rely
21 on his pretended official acts.

22 B. It is [πσ] [NOT A] defense to a prosecution under this section
23 that the office the person pretended to hold did not in fact exist or that
24 the pretended office did not in fact possess the authority claimed for it.

25 C. Impersonating a public servant is a class 1 misdemeanor.

26 D. For the purposes of this section, "public servant" includes a
27 notary public.>>

28 <<Sec. 4. Section 13-2411, Arizona Revised Statutes, is amended to
29 read:

30 13-2411. Peace officer identification required: written
31 policy; exceptions; impersonating a peace officer;
32 classification; definition

33 [A. EACH AGENCY OF THIS STATE OR A POLITICAL SUBDIVISION OF THIS
34 STATE THAT EMPLOYS ONE OR MORE PEACE OFFICERS SHALL ADOPT A WRITTEN POLICY
35 REQUIRING THAT ALL PEACE OFFICERS WHO ARE EMPLOYED BY THE AGENCY VISIBLY
36 DISPLAY IDENTIFICATION THAT INCLUDES THE AGENCY NAME AND THE PEACE
37 OFFICER'S NAME OR BADGE NUMBER, OR BOTH NAME AND BADGE NUMBER, WHEN
38 PERFORMING LAW ENFORCEMENT DUTIES. THE POLICY MAY ALLOW A PEACE OFFICER
39 TO PERFORM LAW ENFORCEMENT DUTIES WITHOUT VISIBLY DISPLAYING THE
40 IDENTIFICATION ONLY IN THE FOLLOWING CIRCUMSTANCES:

41 1. THE PEACE OFFICER IS ENGAGED IN ACTIVE UNDERCOVER OPERATIONS OR
42 INVESTIGATIVE ACTIVITIES.

43 2. THE PEACE OFFICER IS ENGAGED IN A PLAINCLOTHES OPERATION.

44 3. THE PEACE OFFICER IS WEARING PERSONAL PROTECTIVE OR TACTICAL
45 TEAM EQUIPMENT THAT PREVENTS DISPLAY OF THE IDENTIFICATION.

46 4. THE PEACE OFFICER IS ENGAGED IN PROTECTIVE OPERATIONS INVOLVING
47 ELECTED OFFICIALS OR OTHER DIGNITARIES.

1 5. EXIGENT CIRCUMSTANCES INVOLVING AN IMMINENT DANGER TO PERSONS OR
2 PROPERTY, THE ESCAPE OF A PERPETRATOR OR THE DESTRUCTION OF EVIDENCE
3 EXIST, INCLUDING SITUATIONS WHERE THE PEACE OFFICER IS RESPONDING TO THE
4 EXIGENT CIRCUMSTANCES WHILE OFF DUTY.

5 6. THERE IS A SPECIFIC, ARTICULABLE AND PARTICULARIZED REASON TO
6 BELIEVE IDENTIFICATION WOULD POSE A SIGNIFICANT DANGER TO THE PHYSICAL
7 SAFETY OF THE PEACE OFFICER.]

8 ~~[A.]~~ [B.] A person commits impersonating a peace officer if the
9 person, without lawful authority, pretends to be a peace officer and
10 engages in any conduct~~[, INCLUDING THE FRAUDULENT DISPLAY OF GOVERNMENT~~
11 EMPLOYEE IDENTIFICATION.] with the intent to induce another to submit to
12 the person's pretended authority or to rely on the person's pretended
13 acts.

14 ~~[B.]~~ [C.] It is not a defense to a prosecution under this section
15 that the law enforcement agency the person pretended to represent did not
16 in fact exist or that the law enforcement agency the person pretended to
17 represent did not in fact possess the authority claimed for it.

18 [D. A PEACE OFFICER WHO VIOLATES A WRITTEN POLICY ADOPTED PURSUANT
19 TO THIS SECTION AND WHO IS FOUND TO HAVE COMMITTED ASSAULT OR UNLAWFUL
20 IMPRISONMENT MAY NOT ASSERT ANY PRIVILEGE OR IMMUNITY FOR THE PEACE
21 OFFICER'S CONDUCT AGAINST A CLAIM OF CIVIL LIABILITY AND IS LIABLE TO THE
22 PERSON INJURED BY THE PEACE OFFICER'S CONDUCT IN THE AMOUNT OF \$10,000 OR
23 ACTUAL DAMAGES, WHICHEVER IS GREATER.]

24 ~~[C.]~~ [E.] Impersonating a peace officer is a class 6 felony,
25 except that impersonating a peace officer during the commission of any of
26 the following felonies is a class 4 felony:

- 27 1. Negligent homicide.
- 28 2. Manslaughter.
- 29 3. First degree murder.
- 30 4. Second degree murder.
- 31 5. Assault.
- 32 6. Aggravated assault.
- 33 7. Sexual assault.
- 34 8. Violent sexual assault.
- 35 9. Sexual abuse.
- 36 10. Unlawfully administering intoxicating liquors, narcotic drugs or
37 dangerous drugs.
- 38 11. Attack by a person's vicious animal as prescribed in section
39 13-1208.
- 40 12. Drive by shooting.
- 41 13. Discharging a firearm at a structure.
- 42 14. Aggravated criminal damage.
- 43 15. Theft.
- 44 16. Theft by extortion.
- 45 17. Theft of a credit card or obtaining a credit card by fraudulent
46 means.
- 47 18. Misconduct involving weapons.

- 1 19. Misconduct involving explosives.
- 2 20. Depositing explosives.
- 3 21. Procuring or placing persons in a house of prostitution.
- 4 22. Dangerous crimes against children as prescribed in section
- 5 13-705.
- 6 23. Burglary.
- 7 24. Arson.
- 8 25. Kidnapping.
- 9 26. Robbery.

10 ~~[D.]~~ [E.] For the purposes of this section, "peace officer" has the
11 same meaning prescribed in section 1-215 and includes any federal law
12 enforcement officer or agent who has the power to make arrests pursuant to
13 federal law.>>

14 <<Sec. 5. Title 13, chapter 24, Arizona Revised Statutes, is
15 amended by adding section 13-2415, to read:

16 13-2415. Peace officers; masks; written policy; prohibition;
17 definitions

18 [A. EACH AGENCY OF THIS STATE OR A POLITICAL SUBDIVISION OF THIS
19 STATE THAT EMPLOYS ONE OR MORE PEACE OFFICERS SHALL ADOPT A WRITTEN POLICY
20 THAT PROHIBITS EACH PEACE OFFICER WHO IS EMPLOYED BY THE AGENCY FROM
21 WEARING A FACIAL COVERING THAT CONCEALS OR OBSCURES THE PEACE OFFICER'S
22 FACIAL IDENTITY WHEN PERFORMING LAW ENFORCEMENT DUTIES. THE POLICY MAY
23 ALLOW A PEACE OFFICER TO PERFORM LAW ENFORCEMENT DUTIES WITH A FACIAL
24 COVERING ONLY IN THE FOLLOWING CIRCUMSTANCES:

25 1. THE PEACE OFFICER IS ENGAGED IN ACTIVE UNDERCOVER OPERATIONS.

26 2. THE PEACE OFFICER IS ENGAGED IN A TACTICAL OPERATION WHERE
27 PROTECTIVE GEAR IS REQUIRED FOR THE PHYSICAL SAFETY OF THE PEACE OFFICER.

28 3. TO PROTECT THE PEACE OFFICER'S IDENTITY DURING A COURT
29 PROCEEDING.

30 4. THE PEACE OFFICER IS WEARING PERSONAL PROTECTIVE EQUIPMENT
31 ALLOWED OR REQUIRED UNDER APPLICABLE OCCUPATIONAL HEALTH AND SAFETY OR
32 REASONABLE ACCOMMODATION LAWS.

33 B. A PEACE OFFICER WHO VIOLATES A WRITTEN POLICY ADOPTED PURSUANT
34 TO THIS SECTION AND WHO IS FOUND TO HAVE COMMITTED ASSAULT OR UNLAWFUL
35 IMPRISONMENT MAY NOT ASSERT ANY PRIVILEGE OR IMMUNITY FOR THE PEACE
36 OFFICER'S CONDUCT AGAINST A CLAIM OF CIVIL LIABILITY AND IS LIABLE TO THE
37 PERSON INJURED BY THE PEACE OFFICER'S CONDUCT IN THE AMOUNT OF \$10,000 OR
38 ACTUAL DAMAGES, WHICHEVER IS GREATER.

39 C. FOR THE PURPOSES OF THIS SECTION:

40 1. "FACIAL COVERING":

41 (a) MEANS AN OPAQUE MASK, GARMENT, HELMET, HEADGEAR OR OTHER ITEM
42 THAT CONCEALS OR OBSCURES THE FACIAL IDENTITY OF AN INDIVIDUAL, INCLUDING
43 A BALACLAVA, TACTICAL MASK, GATOR OR SKI MASK.

44 (b) DOES NOT INCLUDE ANY OF THE FOLLOWING:

45 (i) A TRANSLUCENT FACE SHIELD OR CLEAR MASK THAT DOES NOT CONCEAL A
46 PEACE OFFICER'S FACIAL IDENTITY AND THAT IS USED IN COMPLIANCE WITH THE
47 AGENCY'S WRITTEN POLICY.

1 (ii) A MEDICAL MASK OR SURGICAL MASK THAT IS USED TO PROTECT
2 AGAINST TRANSMISSION OF DISEASE OR INFECTION.

3 (iii) A MASK, HELMET OR DEVICE, INCLUDING AN AIR PURIFYING
4 RESPIRATOR, FULL OR HALF MASK OR SELF-CONTAINED BREATHING APPARATUS, THAT
5 IS NECESSARY TO PROTECT AGAINST EXPOSURE TO ANY TOXIN, GAS, SMOKE,
6 INCLEMENT WEATHER OR OTHER HAZARDOUS OR HARMFUL ENVIRONMENTAL CONDITION.

7 (iv) A MASK, HELMET OR DEVICE, INCLUDING A SELF-CONTAINED BREATHING
8 APPARATUS, THAT IS NECESSARY FOR UNDERWATER USE.

9 (v) A MOTORCYCLE HELMET WHEN WORN BY A PEACE OFFICER USING A
10 MOTORCYCLE OR OTHER VEHICLE THAT REQUIRES A HELMET FOR SAFE OPERATIONS
11 WHILE IN THE PERFORMANCE OF LAW ENFORCEMENT DUTIES.

12 (vi) EYEWEAR THAT IS NECESSARY TO PROTECT FROM THE USE OF RETINAL
13 WEAPONS, INCLUDING LASERS.

14 2. "PEACE OFFICER" HAS THE SAME MEANING PRESCRIBED IN SECTION 1-215
15 AND INCLUDES ANY FEDERAL LAW ENFORCEMENT OFFICER OR AGENT WHO HAS THE
16 POWER TO MAKE ARRESTS PURSUANT TO FEDERAL LAW.]>>

17 Sec. 6. Title 13, chapter 25, Arizona Revised Statutes, is amended
18 by adding section 13-2515, to read:

19 13-2515. Unlawful alerting of another person to avoid arrest;
20 classification; definitions

21 A. A PERSON COMMITS UNLAWFUL ALERTING OF ANOTHER PERSON TO AVOID
22 ARREST IF THE PERSON, WITH THE INTENT TO HINDER, DELAY OR PREVENT THE
23 LAWFUL ARREST OF THE OTHER PERSON, KNOWINGLY COMMUNICATES INFORMATION TO
24 THE OTHER PERSON THAT ALERTS OR WARNS THE OTHER PERSON OF A REAL-TIME,
25 IMMINENT OR ONGOING EFFORT TO ARREST THE OTHER PERSON BY A LOCAL, STATE OR
26 FEDERAL LAW ENFORCEMENT OFFICER.

27 B. THIS SECTION DOES NOT APPLY TO:

28 1. AN ATTORNEY WHO PROVIDES LAWFUL LEGAL ADVICE TO THE ATTORNEY'S
29 CLIENT.

30 2. A PERSON WHO PROVIDES INFORMATION IN RESPONSE TO A LAWFUL
31 REQUEST BY A LOCAL, STATE OR FEDERAL LAW ENFORCEMENT OFFICER.

32 3. A PERSON'S COMMUNICATION THAT IS MADE WITHOUT KNOWLEDGE THAT THE
33 PERSON WARNED IS THE SUBJECT OF AN ARREST.

34 4. A PERSON'S COMMUNICATION THAT IS MADE WITHOUT THE INTENT TO
35 HINDER, DELAY OR PREVENT THE LAWFUL ARREST OF ANOTHER PERSON.

36 C. THE ATTORNEY GENERAL OR THE COUNTY ATTORNEY OF THE COUNTY IN
37 WHICH THE OFFENSE OCCURS MAY PROSECUTE VIOLATIONS OF THIS SECTION.

38 D. UNLAWFUL ALERTING OF ANOTHER PERSON TO AVOID ARREST IS A CLASS 1
39 MISDEMEANOR.

40 E. FOR THE PURPOSES OF THIS SECTION:

41 1. "COMMUNICATES" INCLUDES:

42 (a) AN ELECTRONIC COMMUNICATION.

43 (b) A GESTURE.

44 (c) VERBAL STATEMENTS.

45 (d) SIGNALS OR THE USE OF AMPLIFIED SOUNDS BELLS, WHISTLES OR
46 SIMILAR DEVICES WHEN USED AS INTENTIONAL SIGNALING.

47 (e) A WRITTEN MESSAGE.

1 (f) ANY OTHER METHOD OF CONVEYING INFORMATION THAT IS NOT LISTED IN
2 SUBDIVISION (a), (b), (c), (d) OR (e) OF THIS PARAGRAPH.

3 2. "IMMINENT OR ONGOING EFFORT TO ARREST":

4 (a) MEANS A LAW ENFORCEMENT ACTIVITY THAT OCCURS CONTEMPORANEOUSLY
5 WITH OR IMMEDIATELY PRECEDING AN ATTEMPT TO TAKE A PERSON INTO CUSTODY.

6 (b) INCLUDES SURVEILLANCE, APPROACH, PURSUIT OR EXECUTION OF AN
7 ARREST WARRANT BY A LAW ENFORCEMENT OFFICER.

8 3. "INTENTIONAL SIGNALING" MEANS A PERSON'S DELIBERATE USE OF
9 SOUND, LIGHT, MOVEMENT OR OTHER CONDUCT THAT IS MADE FOR THE PURPOSE OF
10 CONVEYING A WARNING TO OR ALERTING ANOTHER PERSON.

11 4. "LAW ENFORCEMENT OFFICER" MEANS AN INDIVIDUAL WHO IS AUTHORIZED
12 BY LAW TO ENGAGE IN OR SUPERVISE THE PREVENTION, DETECTION, INVESTIGATION
13 OR ENFORCEMENT OF LAWS AND WHO IS EMPLOYED BY OR ACTING ON BEHALF OF A
14 LOCAL, STATE OR FEDERAL GOVERNMENTAL ENTITY.

15 5. "LAWFUL ARREST" MEANS AN ARREST THAT IS SUPPORTED BY LEGAL
16 AUTHORITY AND PROBABLE CAUSE EVEN IF A WARRANT HAS NOT BEEN ISSUED.

17 Sec. 7. Severability

18 If a provision of this act or its application to any person or
19 circumstance is held invalid, the invalidity does not affect other
20 provisions or applications of the act that can be given effect without the
21 invalid provision or application, and to this end the provisions of this
22 act are severable.

23 Enroll and engross to conform

24 Amend title to conform

CATHERINE MIRANDA

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